

under the case law is not subject to a rigid test but is evaluated under the totality of the facts concerning the employee's position, job title, job duties, and performance expectations, among other factors. (*Hosanna-Tabor, supra*, 565 U.S. at 190, 192; *Our Lady of Guadalupe, supra*, 591 U.S. at 753-754, 758.) On summary judgment, the Court is obligated to decide factual disputes in favor of the nonmoving party. (*Hope International, supra*, 119 Cal.App.4th at 738.) Here, Plaintiff has presented a substantial factual and evidentiary record in opposition to the motion showing that Plaintiff's job duties and expectations were primarily, if not entirely, secular, and that her performance was reviewed based on secular criteria in managing The Rock's finances, physical operations, event planning, and human resources issues from a legal, tax, and accounting compliance standpoint. The evidence is in conflict and supports conflicting inferences as to whether Plaintiff's role was "ministerial" so as to make the exception applicable.

Conclusion and Ruling

Defendant's motion is based solely on its attempt to classify Plaintiff, as a matter of law, as an employee within the ministerial exception. (*Hope International, supra*, 119 Cal.App.4th at 738; *Atkins, supra*, 90 Cal.App.5th at 1345.) (*See also Su v. Stephen S. Wise Temple* (2019) 32 Cal. App. 5th 1159, 1169-1170.) The record does not support such a determination as a matter of law under the flexible, nonexclusive factors described in the leading United States Supreme Court's decisions as applied in the California case law.

The record also does not show as a matter of law that the Court reviewing Plaintiff's claims for retaliation and wrongful termination will require the Court to wade into religious or doctrinal matters involving the church, ecclesiastical or biblical issues, which might interfere with International Foursquare's religious freedom and autonomy in religious matters. Defendant did not submit UMFs or argument that Defendant terminated Plaintiff from her position with The Rock on religious grounds or for violation of The Rock's religious tenets. (*See, e.g., Sumner v. Simpson University* (2018) 27 Cal. App. 5th 577, 593-594 [holding Court determining breach of employment contract claim for termination of employee not barred by the ministerial exception "because review of the breach of contract claim does not require a review of Sumner's religious qualification or performance as a religious leader"].)

The motion is **DENIED**.

Plaintiff's Evidentiary Objections

Plaintiff filed evidentiary objections to Mr. Fry's declaration. The Court is only required to rule on those objections the Court finds are material to its ruling. (Code Civ. Proc. § 437c(q).) The Court does not find the objections material to the outcome of the motion, given the Court's ruling that triable issues exist based on the evidence, precluding summary judgment.

5. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION

*HEARING ON MOTION IN RE: SEAL

FILED BY: DAVID T. SEENO

TENTATIVE RULING:

The hearing is ordered **OFF-CALENDAR**, as this motion to seal was granted by stipulation of the parties and the Court's Order signed July 23, 2026.

6. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: DAVID T. SEENO

TENTATIVE RULING:

Before the Court is David T. Seeno ("Cross-Defendant")'s demurrer to Albert D. Seeno, Jr. ("Cross-Complainant")'s Cross-Complaint for unjust enrichment and promissory fraud.

Cross-Defendant demurs on several grounds, including that the probate court has exclusive jurisdiction over trust administration and termination disputes.

For the following reasons, the Court on its own motion transfers this matter to the Probate Division of this Court. Cross-Defendant can thereafter reschedule this demurrer (and concurrent motion to strike) for hearing in the Probate Division. In the event the Probate Division finds this transfer was made in error, it may transfer this action back to this Department as it sees fit.

Request for Judicial Notice

Cross-Defendant requests judicial notice of several pleadings and orders in P24-00908 In re Albert D. Seeno, Jr. and Sandra L. Seeno PCI Trust for David T. Seeno. Cross-Complainant objects to this request on several grounds. Those objections are **OVERRULED**. However, "[w]hile [the Court] may take judicial notice of court records and official acts of state agencies (Evid. Code, § 452, subds.(c), (d)), the truth of matters asserted in such documents is not subject to judicial notice." (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.) "A court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments. [Citations.]" (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22.) Subject to those limitations, the request is **GRANTED**.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The